

**JUSTIFICATION & APPROVAL FOR FEDERAL ACQUISITION
REGULATION SUBPART 16.5 ACQUISITIONS
EXCEPTION TO FAIR OPPORTUNITY**

Multiple Award Contract
Orders under Fair Opportunity
Federal Acquisition Regulation (FAR) 16.505(b), Defense FAR Supplement 216.505(b),
Procedures, Guidance, and Information 216.505(b)

Military Interdepartmental Purchase Request Numbers: [REDACTED]
Joint Warfighting Cloud Capability (JWCC) Contract Number: HC105023D0005
Task Order (TO) Number: To be determined
Procurement Title: Transition Package 2 Impact Level (IL)5 and IL6 cloud to JWCC
Estimated Value: [REDACTED]
Statutory and Regulatory Authority: 10 United States Code (U.S.C.) 3204(a) and FAR
16.505(b)(2)(i)(B)

EXCEPTION TO FAIR OPPORTUNITY

Number: JA25-044

Upon the basis of the following justification, I, as the Procuring Activity Competition Advocate (PACA), hereby approve this exception to fair opportunity pursuant to the Statutory Authority of 10 U.S.C. 3204(a) and Regulatory Authority of FAR 16.505(b)(2)(i)(B).

1. REQUESTING AGENCY AND CONTRACTING OFFICE:

Requesting Agency:

Missile Defense Agency (MDA) / Office of the Chief Information Officer (CIO)
730 Irwin Avenue
Schriever Space Force Base, CO 80912

Contracting Activity:

Defense Information Systems Agency (DISA) / Defense Information Technology
Contracting Organization (DITCO) / Cloud Capabilities Section (PS8511)
2300 East Drive
Scott Air Force Base, IL 62225-5406

2. NATURE/DESCRIPTION OF ACTION(S):

This action is to issue a firm-fixed-price task order against the JWCC Indefinite Delivery/Indefinite Quantity Contract for Transition Package 2 IL5 and IL6 cloud to JWCC. This TO will be issued directly to Amazon Web Services, Inc (AWS). The anticipated period of performance is for a 1-year base period, plus a 1-year option period. The total estimated value is [REDACTED] which will be funded by Research, Development, Test, & Evaluation funds.

3. DESCRIPTION OF SUPPLIES/SERVICES:

MDA has multiple existing IL5 and IL6 workloads which include Infrastructure as a Service (IaaS) such as virtual machines and storage.

4. SUPPORTING RATIONALE, INCLUDING A DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF AN EXCEPTION TO FAIR OPPORTUNITY:

(a) Exception to Fair Opportunity.

FAR 16.505(b)(2)(i)(B) - Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

(b) Description of the Justification.

MDA has been provisioning cloud services through AWS at IL5 and IL6 for the past three years. MDA has also extended existing Local Area Network and Demilitarized Zone networks to AWS using current AWS Bifrost connections. MDA does not have its own connection into Secure Internet Protocol Router, so MDA had to build two AWS Bifrost Type one encrypted connections at 10GB each. The Government's current need requires a cloud platform compatible with MDA's existing data. Migrating these services to another Cloud Service Provider (CSP) would impact MDA Program Executive Office's ability to deliver congressionally mandated Missile Defense capabilities to the warfighter. Additionally, migration to another CSP would take 18 to 24 months and an estimated cost of \$2 million. AWS is the only CSP capable of performing MDA's requirement with no impact to mission critical services.

(c) Justification.

(1) Minimum Government requirements.

MDA requires IL5 and IL6 cloud service offerings to continue at their current level in order to support uninterrupted delivery of services such as development, security, operations, model-based systems engineering, product lifecycle management, requirements management, data management, Artificial Intelligence/Machine Learning, identity and access management, and computer network defense. These cloud services must be able to seamlessly integrate with MDA's existing systems and data.

(2) Proposed sole source contractor. AWS

(3) Discussion regarding the cause of the sole source situation.

The only CSP capable of performing MDA's highly specialized IL5 and IL6 cloud services at the required level of quality is the incumbent contractor, AWS. Transitioning

from AWS to another CSP would cost an estimated [REDACTED] and delay the MDA Program Executive Office's ability to deliver congressionally mandated Missile Defense capabilities to the warfighter. Due to compatibility requirements, in addition to the costs and time, MDA would have to refactor critical cloud offerings. This is not beneficial to the Government.

MDA has very stringent security requirements which require a significant amount of time and effort to build a compliant cloud environment. Once built, MDA's Computer Emergency Response Team (CERT) must monitor the environment 24/7, 365 days a year. Adding additional environments will impact the CERT's ability to effectively complete that work, increasing the risk of adversaries gaining access to critical MDA data. Therefore, adding an additional platform to monitor would require the expansion of the security team along with additional costs.

(4) Demonstration of unique source.

AWS possesses the knowledge, skills, capabilities, certification, clearance, and experience required to continue the program without a break or degradation in critical mission services. Given these critical mission requirements, AWS is the only contractor that is capable of performing the necessary services for the DoD within the current required timeline.

(5) Procurement discussion.

Based on outreach to the four CSPs in February 2024, the only CSP that is currently capable of meeting the minimum needs of the Government is AWS. Using MDA IL5 and IL6 cloud services to deliver congressionally mandated Missile Defense capabilities to the warfighter is critical to the mission.

(6) Impact.

Migration to another CSP from AWS is not feasible based on the inability of any other CSP to seamlessly integrate with the existing architecture. The impact of not procuring through AWS would result in MDA facing a critical break in service and would delay the MDA Program Executive Office's ability to deliver congressionally mandated Missile Defense capabilities to the warfighter, which would result in mission failure.

5. COST/PRICE FAIR AND REASONABLE DETERMINATION:

A determination that the price is fair and reasonable will be based on a comparison of the contractor's proposal to the Independent Government Cost Estimate and the JWCC Catalog pricing, including any discounts, which was previously found to be fair and reasonable and based on the contractor's commercial pricing.

6. MARKET RESEARCH:

Market research for the basic JWCC Contracts was conducted and resulted in a signed market research report on November 9, 2021, that was revalidated and recertified on July 29, 2024. After a survey of the market, it was concluded that use of the JWCC Contract is in the Government's best interest due to technical feasibility and cost to the Government.

Additional research was conducted on February 2, 2024, by reviewing the specific capabilities in the JWCC Contracts and it was determined that AWS is the only source capable of fulfilling the Government's minimum needs in the manner and time frame required. In February 2024, MDA issued the *Additional Research to Support Fair Opportunity* to the four CSPs. MDA received responses from Microsoft, Oracle, and AWS. Google indicated they would not respond due to their inability to meet the requirement.

After reviewing the information gathered from the Market Research, it was determined that while Microsoft and Oracle offer comparable services, there would be significant costs associated with re-architecting, re-engineering, and refactoring solutions, as well as costs associated with maintaining two solutions on separate platforms. Such substantial duplication of costs is not expected to be recovered through competition.

7. ANY OTHER SUPPORTING FACTS: None.

8. ACTIONS THE AGENCY MAY TAKE TO REMOVE OR OVERCOME BARRIERS THAT LED TO THE EXCEPTION TO FAIR OPPORTUNITY:

(a) Procurement History:

Contract Number: HQ079617D0001
Task Order Number: HQ085722F8003 and HQ085722F8700
Period of Performance: May 1, 2018 - May 1, 2026
Competitive Status: Fair opportunity
Business Size: Large business

- (b) To overcome future barriers to competition, future development and enhancement of IaaS components will include shifting to a containerized platform. This will enable multiple CSPs to meet the requirements which will enable the flexibility to shift workload based on financial and mission requirements.

TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: Joseph Pretty

SIGNATURE: [REDACTED]

TITLE/AGENCY: Cloud COTR, Missile Defense Agency (MDA)

PHONE: [REDACTED]

DATE:

REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: Joseph Pretty

SIGNATURE: [REDACTED]

TITLE/AGENCY: Cloud COTR, Missile Defense Agency (MDA)

PHONE: [REDACTED]

DATE:

CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.

NAME: Darryl Boswell

SIGNATURE: [REDACTED]

TITLE/AGENCY/ORGANIZATION: JWCC Contracting Officer, DISA/DITCO/PS8511

PHONE: [REDACTED]

DATE:

PROCURING ACTIVITY COMPETITION ADVOCATE APPROVAL: I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this justification does not exceed [REDACTED] this review serves as approval and my written determination that the aforementioned FAR circumstances apply.

NAME: Gay D. Arnold

SIGNATURE: [REDACTED]

TITLE/AGENCY/ORGANIZATION: PACA

PHONE: [REDACTED]

DATE:

ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO Emelie Vandelloo, [REDACTED]